

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
WINSTON A. WARNER,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GERARD
WHITE, TAX REG# 921854, in his individual and
official capacity SERGEANT ROSENTHAL in his
individual and official capacity, POLICE OFFICERS
"JOHN DOES" 1-10 in their individual and official
capacity, HRV MANAGEMENT, INC., ASTORIA
TOWER 31 LLC and WVILLAHDO CONTRERAS,Defendant(s).
-----X

Index No.:

SUMMONSPlaintiff designates Queens County
as the county of trial.

Venue Basis:

Place of incident

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: Forest Hills, New York
February 25, 2015

Yours, etc.,

RENFROE DRISCOLL & FOSTER, LLP

By: Patrick K. Foster

Patrick K. Foster, Esq.

Attorneys for Plaintiff

118-35 Queens Blvd., Suite 940

Forest Hills, New York 11375

Tel. No.: (718) 261-5100

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TO: HRV MANAGEMENT, INC.
18-29 27th Avenue

Astoria, New York 11102

ASTORIA TOWER 31 LLC

18-29 27th Avenue

Astoria, New York 11102

WVILLAHDO CONTRERAS

18-29 27th Avenue

Astoria, New York 11102

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X **Index No.:**

WINSTON A. WARNER,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GERARD
WHITE, TAX REG# 921854, in his individual and
official capacity SERGEANT ROSENTHAL in his
individual and official capacity, POLICE OFFICERS
“JOHN DOES” 1-10 in their individual and official
capacity, HRV MANAGEMENT, INC., ASTORIA
TOWER 31 LLC and WVILLAHDO CONTRERAS,**

JURY TRIAL DEMANDED

Defendant(s).

-----X

Plaintiff, WINSTON A. WARNER, by and through his attorneys, RENFROE
DRISCOLL & FOSTER, LLP, as and for his Complaint, against the Defendants, respectfully
states and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil action for monetary relief, including past economic loss, compensatory
damages, punitive damages, disbursements, costs and fees brought under 42 U.S.C. §§ 1983,
1985 and 1986, and grounded in rights secured by the First, Fourth, Fifth, Sixth and Fourteenth
Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff
was deprived of his constitutional and common law rights when the individual defendants falsely
arrested Plaintiff and/or caused Plaintiff to be falsely arrested.

JURISDICTION

2. This action is brought pursuant to CPLR § 301.

3. Jurisdiction over the federal claims is based upon concurrent jurisdiction.

4. That all conditions precedent to instituting the lawsuit have been complied with in a timely manner including but not limited to the filing of a notice of claim. In response to the notice of claim, the defendants failed to settle the matter.

VENUE

5. Venue herein is proper as the cause of action arose in Queens County

PARTIES

6. During all times relevant to this Complaint, Plaintiff, WINSTON A. WARNER, was and still is, a resident of the County of Queens, State of New York.

7. The Defendant, CITY OF NEW YORK (hereinafter "CITY"), is a duly constituted municipal corporation of the State of New York and is and was the employer of Defendants, POLICE OFFICER GERARD WHITE, TAX REG# 921854 (hereinafter "WHITE"), SERGEANT ROSENTHAL (hereinafter "ROSENTHAL") and certain of the unnamed police officers and Detectives, and other personnel (hereinafter "JOHN DOES 1-10").

8. The Defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), is an agency of the CITY.

9. Upon information and belief, during all times relevant to this Complaint, Defendant, WHITE, was and is a citizen and resident of the State of New York; and at all times herein mentioned was a Police Officer employed by the CITY, under the direction of the NYPD and CITY and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or CITY, and acting in his individual and official capacity.

10. Upon information and belief, during all times relevant to this Complaint, Defendant, ROSENTHAL, was and is a citizen and resident of the State of New York; and at all times herein mentioned was a Police Officer employed by the CITY, under the direction of the NYPD and CITY and was acting in furtherance of the scope of his employment, acting under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or CITY, and acting in his individual and official capacity.

11. That JOHN DOES 1-10 were at all times herein mentioned police officers and/or detectives, in their individual and official capacities, employed by both CITY and NYPD under direction of Defendants CITY and NYPD, and were acting in furtherance of the scope of their employment, acting under color of law, *to wit*, under color of statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the CITY and/or the NYPD.

12. During all times relevant to this Complaint, Defendants WHITE, ROSENTHAL and certain of the unnamed police officers and Detectives, and other personnel (JOHN DOES 1-10), and each of them, were acting under color of law, *to wit*, under color of constitution, statutes, ordinances, laws, rules, regulations, policies, customs and usages of the State of New York and/or the CITY.

13. During all times relevant to this Complaint, the Defendants WHITE, ROSENTHAL and certain of the unnamed police officers and Detectives, and other personnel (JOHN DOES 1-10), separately and in concert, engaged in acts or omissions which constituted deprivation of the constitutional rights, privileges and immunities of the Plaintiff, and while these acts were carried out under color of law, they had no justification or excuse in law and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may

appropriately and legally engage in the course of protecting persons and property or ensuring civil order.

14. During all times relevant to this Complaint, the Defendants WHITE, ROSENTHAL and certain of the unnamed police officers and Detectives, and other personnel (JOHN DOES 1-10), and each of them, had the power and the duty to restrain the other Defendants and prevent them from violating the law and the rights of the Plaintiff, but each of the Defendants failed and refused to restrain the other Defendants; and thereby, became a party to unlawfully subjecting the Plaintiffs to harm and denial of basic rights.

15. During all times relevant to this Complaint, Defendant, HRV MANAGEMENT, was and still is a domestic business entity duly organized and existing under and by virtue of the laws of the State of New York.

16. During all times relevant to this Complaint, Defendant, HRV MANAGEMENT, INC., was and still is a foreign business entity that transacts business in the State of New York.

17. During all times relevant to this Complaint, Defendant, HRV MANAGEMENT, INC., is the owner/Lessor of the premises known as 31-72 31st Street, County of Queens, State of New York.

18. During all times relevant to this Complaint, Defendant, HRV MANAGEMENT, INC., owned, managed, maintained and/or controlled the premises know as 31-72 31st Street, County of Queens, State of New York.

19. During all times relevant to this Complaint, Defendant, HRV MANAGEMENT, INC., supervised and controlled Defendant, WVILLAHDO CONTRERAS.

20. During all times relevant to this Complaint, Defendant, ASTORIA TOWER 31 LLC, was and still is a domestic business entity duly organized and existing under and by virtue of the laws of the State of New York.

21. During all times relevant to this Complaint, Defendant, ASTORIA TOWER 31 LLC, was and still is a foreign business entity that transacts business in the State of New York.

22. During all times relevant to this Complaint, Defendant, ASTORIA TOWER 31 LLC, is the owner/Lessor of the premises known as 31-72 31st Street, County of Queens, State of New York.

23. During all times relevant to this Complaint, Defendant, ASTORIA TOWER 31 LLC, owned, managed, maintained and/or controlled the premises know as 31-72 31st Street, County of Queens, State of New York.

24. During all times relevant to this Complaint, Defendant, ASTORIA TOWER 31 LLC, supervised and controlled Respondent, WVILLAHDO CONTRERAS.

25. During all times relevant to this Complaint, Defendant, WVILLAHDO CONTRERAS, was and still is a resident of the State of New York.

26. During all times relevant to this Complaint, Defendant, WVILLAHDO CONTRERAS, was employed by HRV MANAGEMENT, was acting in furtherance of the scope of his employment with HRV MANAGEMENT and acting in his individual capacity.

27. During all times relevant to this Complaint, Defendant, WVILLAHDO CONTRERAS, was employed by ASTORIA TOWER 31 LLC, was acting in furtherance of the scope of his employment with ASTORIA TOWER 31 LLC and acting in his individual capacity.

FACTUAL ALLEGATIONS

28. During all times relevant to this Complaint, Plaintiff, his wife, Karen Buck-Warner and their infant son were tenants of Defendants, HRV MANAGEMENT, INC. (hereinafter “HRV”) and ASTORIA TOWER 31 LLC (hereinafter “ASTORIA TOWER”). On or about January 3, 2014, Plaintiff informed Defendant, HRV, that Plaintiff would be terminating his tenancy at the premises known as 31-72 31st Street, Apt. # 7B, Astoria, New York, effective March 1, 2014.

29. On or about February 11, 2014, Defendant, HRV, sent a correspondence to Plaintiff stating that HRV was not in receipt of the apartment rent for February 2014 nor the parking rent for February 2014.

30. On or about February 22, 2014, at approximately 3:30 p.m., Plaintiff received a call from his wife, Karen Buck-Warner. Mrs. Buck-Warner, who at that time had her 2013 BMW motor vehicle, bearing license plate number GJG3213, legally parked in Plaintiff’s assigned parking space at the premises known as 31-72 31st Street, Astoria, New York, told Plaintiff that a car boot had been placed on said vehicle.

31. On or about February 22, 2014, at approximately 3:40 p.m., Plaintiff called the 114th Precinct and spoke to the “Desk Officer,” Police officer John Doe, who is known to Defendants but is unknown to Plaintiff. At that time, Plaintiff was directed by the “Desk Officer” to go to the subject premises and to call 911 from that location.

32. On or about February 22, 2014, at approximately 4:30 p.m., Plaintiff call 911 from the premises known as 31-72 31st Street, Astoria, New York, to report that someone had illegally placed a boot on the 2013 BMW motor vehicle. Plaintiff was told that a Radio Mobile Patrol (“RMP”) unit would be dispatched to the location. Upon not seeing a RMP come to the scene, Plaintiff placed another call to 911 at approximately 5:30 p.m.

33. On or about February 22, 2014, at approximately 6:30 p.m. a RMP, with two Police officers, Police Officers John Does, who are known to Defendants but unknown to Plaintiff, arrived on the scene. Plaintiff informed said officers that the 2013 BMW was illegally booted and that he believed that the boot was placed on the vehicle by Defendants, HRV MANAGEMENT, INC., ASTORIA TOWER 31 LLC, WVILLAHDO CONTRERAS and/or their agents.

34. Thereafter, one of the police officers, Police Officer John Doe, who is known to Defendants but unknown to Plaintiff, placed a phone call to the officer of Defendant, HRV, and inquired as to who placed the car boot on the 2013 BMW motor vehicle. Upon information and belief, the police officer spoke to an employee by the name of Anne Melada. The employee at Defendant, HRV, initially stated that she was not aware of a car boot being placed on Plaintiff's motor vehicle. However, she eventually admitted to knowledge of the car boot being placed on the 2013 BMW motor vehicle.

35. Defendants, HRV and WVILLAHDO CONTRERAS (hereinafter "CONTRERAS"), admitted that they were responsible for the boot being placed on the 2013 BMW motor vehicle. However, when the responding officers requested that said Defendants come to the scene and remove the car boot said Defendants were recalcitrant and stated, in sum and substance, that they would not come to the scene and remove the car boot. After completing the foregoing investigation, the responding police officers told Plaintiff that it was their determination that the issue regarding the illegal boot being placed on the 2013 BMW motor vehicle was a civil matter and that the police were powerless to assist Plaintiff. Thereafter, the responding officers left the scene. Upon information and belief, the police officers that responded to the scene on February 22, 2014, documented the incident as a civil matter.

36. Faced with the facts and circumstances described above, Plaintiff made closer inspection of the car boot that was illegally placed on the 2013 BMW motor vehicle. And upon said inspection, Plaintiff noticed that said car boot was not properly secured to the vehicle. Hence, Plaintiff removed the car boot (which should be deemed at that time to be abandoned) from the vehicle.

37. On or about February 24, 2014, Plaintiff received a correspondence from Defendant, HRV. In the correspondence, HRV threatens to prosecute Plaintiff and his wife for the destruction of and stealing “property belonging to Astoria Tower 31.” In the same correspondence, HRV also threatened that Plaintiff and his wife’s “current employers will be notified of all damages . . . , that “it will be noted on all of [Plaintiff and his wife’s] credit reports and will not only adversely affect [Plaintiff and his wife’s] credit, but also future job advancement/recruitment and future residencies.” The correspondence goes on to state that “[a]ll related legal, administrative, damage, and replacement fees will be [Plaintiff and his wife’s] responsibility.” And that “[t]he police will be notified if the [February 2014 apartment rent and the February 2014 parking rent and/or] balance is not paid immediately.”

38. The threat to have Plaintiff and his wife arrested and to ruin their reputations with employers, prospective employers and creditors and prospective landlords, unless Plaintiff and/or his wife pays monies to HRV was an attempted extort Plaintiff and/or his wife; which is outrageous, unacceptable and criminal. The threat placed Plaintiff and his wife in fear and duress. Of interest, this correspondence was not signed by a specific HRV employee, which is the usual practice when a correspondence is sent to Plaintiff. For HRV to take the unusual step of omitting the signature of a particular employee is evidence of scienter.

39. It is clear that the car boot was illegally placed on the 2013 BMW motor vehicle in an effort to harass and extort the Plaintiff and his wife. The illegal booting of the vehicle was a clear violation of Plaintiff and his family's legal rights, and was also done as a means of intimidating Plaintiff and his young family into paying monies to Defendant, HRV.

40. On or about February 26, 2014, Defendant, CONTRERAS, made a false report to the NYPD and had Plaintiff arrested on the charge of petit larceny.

41. On or about February 26, 2014, at approximately 6:10 p.m., Plaintiff was falsely arrested at the 114th Precinct, in the County of Queens, State of New York. Plaintiff was contacted by Defendant, ROSENTHAL, of the 114th Precinct and directed to come to the 114th Precinct in connection with the February 22, 2014, incident.

42. Upon Plaintiff's appearance at the 114th Precinct, on or about February 26, 2014, he was informed by Defendant, ROSENTHAL, and another New York City Police Officer (believed to be Defendant, WHITE) that there was a larceny complaint made against Plaintiff and that Defendant, ROSENTHAL, subsequent to an investigation that included reviewing a video tape of the alleged incident and being informed of the facts and circumstances of the incident, would be arresting Plaintiff. Plaintiff was arrested and detained at the 114th Precinct. Thereafter, he was issued a Desk Appearance Ticket that commanded his appearance at the Queens County Criminal Court of the City of New York to answer criminal charges – *to wit*, petit larceny. On May 1, 2014, the criminal charge was dismissed.

43. It should be noted that, upon information and belief, on or before February 26, 2014, Defendant, ROSENTHAL, and/or another NYPD employee logged into the NYPD data base and saw that the February 22, 2014, incident was documented/reported as a civil matter. In this regard, Defendants, CITY, NYPD, WHITE, ROSENTHAL and certain of the unnamed police

officers and Detectives, and other personnel (JOHN DOES 1-10) conducted an extensive investigation that should have lead these defendants to conclude that no crime was committed by Plaintiff.

44. From the time of Plaintiff's arrest on February 26, 2014, and months thereafter, Plaintiff missed many hours and days from work in order to appear for court and assist in the defense of the criminal action. Plaintiff also expended a substantial amount of money on legal fees.

45. Upon information and belief, Defendant, CONTRERAS, signed a supporting deposition to be used in the prosecution of Plaintiff. Signed supporting depositions are governed under New York Penal Law § 210.45. Section 210.45 penalizes anyone who makes such false written statements as were made by Defendant, CONTRERAS.

46. Defendants, HRV, ASTORIA TOWER and WVILLAHDO CONTRERAS had the specific intent to have Plaintiff falsely arrested.

47. Defendants, HRV, ASTORIA TOWER and WVILLAHDO CONTRERAS acted upon that intent by officiously and zealously concocting lies that induced the NYPD to arrest Plaintiff. In making the arrests, the NYPD was not exercising their own independent judgment as to whether to make the arrest, rather Defendant's false reports and accusations affirmatively induced the NYPD to arrest Plaintiff.

48. Without provocation or cause, Plaintiff was falsely arrested and charged with petit larceny.

49. Plaintiff was unlawfully restrained of his personal liberty and freedom, denied adequate, proper and timely police protection, and subject to the deprivation of his liberty without probable cause at the hands of the CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,

Defendant, WHITE, Defendant, ROSENTHAL, and POLICE OFFICER JOHN DOES 1-10, their agents, employees, servants and assigns.

50. As a result of the defendants, their agents, employees, servants and assigns, failure to act properly, Plaintiff was caused to suffer mental anguish and damage.

51. As a result of the defendants' negligence, failure and wrongful acts, Plaintiff sustained mental anguish, injury to feelings, violation of Constitutional and Civil Rights, expenses incurred, pecuniary injuries and other injuries not yet fully ascertained.

52. Plaintiff demands judgment in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

53. A notice of claim was timely served on the CITY and at least thirty (30) days have elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

54. An examination of Plaintiff, pursuant to GML Section 50-h was conducted on July 1, 2014.

AS AND FOR COUNT ONE

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 54 of this Complaint with the same force and effect as though set forth herein.

56. Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10 were acting in concert and within the scope of their authority when they arrested and caused Plaintiff to be imprisoned without probable cause in violation of Plaintiff's right to be free from an unreasonable seizure under the Fourth Amend to the Constitution of the United States and to

be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. The false arrest of Plaintiff by Defendants, WHITE, ROSENTHAL and POLICE OFFICER JOHN DOES 1-10 was an objectively illegal and unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

58. That by reason of the foregoing, Plaintiff has been exposed to injury to his person, disgrace, humiliation and embarrassment and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, attorneys fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR COUNT TWO

42 U.S.C. §1983 – Municipal Liability

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 58 of this Complaint with the same force and effect as though set forth herein.

60. Prior to February 26, 2014, and since, Defendants, CITY and NYPD have permitted and tolerated a pattern and practice of unlawful arrest by police officers against persons within the City of New York. Despite the egregiously improper conduct, the officers involved were not prosecuted, seriously disciplined or subjected to restraint. As a result, Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10, were caused and encouraged to believe that individuals could be unlawfully arrested without probable cause, and that such behavior would, in fact, be permitted by CITY.

61. In addition to permitting a pattern and practice of falsely arresting persons, CITY has failed to maintain a proper system for oversight of officers and supervisors and for investigation of all incidents of illegal arrests by their agents/employees.

62. The CITY has failed to respond to the continuing and urgent need to prevent, restrain and discipline police officers that deprive citizens of their civil rights.

63. A system allegedly maintained by the CITY, has failed to properly review unjustified behavior and activities by police officers, and has failed to identify the violative acts by police officers and to subject officers to discipline, closer supervision or restraint to the extent that it has become the custom of the CITY to tolerate the unlawful arrest and other wrongful actions by police officers.

64. Upon information and belief, specific systemic flaws in the CITY's police misconduct review process include but are not limited to the following:

- a. Preparing reports regarding investigations of incidents as routine point-by point justification of the police officers' actions regardless of whether such actions are justified;
- b. Police officers investigating incidents systematically fail to credit testimony by non-police officer witnesses and uncritically rely on reports by police officers involved in the incident;
- c. Police officers investigating incidents fail to include in their reports relevant factual information that would tend to contradict the statements of the police officer involved;
- d. Police officers failing to communicate, properly respond to the scene and failing to provide the proper supervision at the scene of incidents;
- e. Create and manufactured false testimony and evidence;
- f. Overlooking false and misleading statements made by Police Personnel.

65. The foregoing acts, omissions, systemic flaws, policies and customs of the CITY caused New York City Police Officers to believe that improper actions would not be aggressively, honestly and properly investigated with the foreseeable result that officers are most likely to act inappropriately and unreasonably, and commit tortuous and illegal acts against persons. These such failure continued and were part of an ongoing culture.

66. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies and customs of Defendant, CITY, Plaintiff was arrested without probable cause, in violation of his civil and constitutional rights. Moreover, he has suffered and will continue to suffer from psychological harm, humiliation, fear, and severe physical, emotional and psychological damage, resulting in the need to seek professional counseling for the trauma which he incurred. All of these rights are secured to Plaintiff by the provisions of the Fourth Amendment, the due process clause of the Fifth and Fourteenth Amendments of the Constitution of the United States, as well as 42 U.S.C. § 1983.

67. That by reason of the foregoing, Plaintiff has been exposed to injury to his person, disgrace, humiliation and embarrassment and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, attorneys fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR COUNT THREE

42 U.S.C. § 1985 – Conspiracy

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 67 of this Complaint with the same force and effect as though set forth herein.

69. Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10, expressly and impliedly, agreed with each other to arrest Plaintiff without probable cause. All without consideration of Plaintiff's rights and in violation of Plaintiff's rights.

70. That the false arrest and violation of the laws of the State of New York and Plaintiff's civil rights were brought about and caused by the actions of Defendants and that the same were a clear and intentional abuse of process causing Plaintiff damages. All of these rights are secured to Plaintiff by the provisions of the Constitution of the United States and by 42 U.S.C. § 1985.

71. That by reason of the foregoing, Plaintiff has been exposed to injury to his person, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, attorneys fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR COUNT FOUR

42 U.S.C. § 1986 – Failure to Intervene

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 71 of this Complaint with the same force and effect as though set forth herein.

73. Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10, knew or should have known that the arrest of Plaintiff without probable cause violated the Plaintiff's rights, guaranteed to him under the Fourth, Fifth, and Fourteenth Amendments and 42 U.S.C. §§ 1983, 1985 and 1986.

74. Each of the said Defendants had the authority, ability and concurrent duty under 42 U.S.C. § 1986 to prevent the unlawful arrest of Plaintiff yet neglected to prevent said violations

from occurring, and further failed to intervene to protect or aid the Plaintiff when such violations did in fact occur. All without consideration of plaintiff's rights and in violation of Plaintiff's rights.

75. Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10, failure to stop the unlawful arrest of Plaintiff constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

76. Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-10, knew or should have known that the arrest of Plaintiff without probable cause was violative of his Fourth, Fifth and Fourteenth Amendment rights to due process, and were tantamount to unequal protection under the law, in violation of the Plaintiff's fundamental rights under the Constitution.

77. That by reason of the foregoing, Plaintiff has been exposed to injury to his person, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, attorneys fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR COUNT FIVE

Negligent Hiring, Retention, Training and Supervision

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force as if more fully set forth at length herein.

79. The CITY and NYPD and their employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named Defendants, P.O. WHITE, P.O. ROSENTHAL and POLICE OFFICER JOHN DOES 1-

10, who were unfit for the performance of their duties on June 12, 2013, at the aforementioned location.

80. That by reason of the foregoing, Plaintiff has been exposed to injury to his person, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, attorneys fees pursuant 42 U.S.C. §1988, and punitive damages.

AS AND FOR COUNT SIX

Negligence against Defendants City, NYPD, HRV and ASTORIA TOWER

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force as if more fully set forth at length herein.

82. Defendants owed a duty of care to plaintiff.

83. Defendants breached that duty of care by unlawfully arresting and unlawfully causing the arrest of Plaintiff.

84. As a direct and proximate cause of this unlawful conduct, plaintiff sustained damages hereinbefore alleged.

85. All the foregoing occurred without any fault or provocation by plaintiff.

86. The CITY, NYPD, HRV and ASTORIA TOWER as the employers of the individual defendants are responsible for their wrongdoing under the doctrine of respondent superior.

87. That by reason of the foregoing, Plaintiff has been exposed to the deprivation of this constitutional rights, false imprisonment, severe emotional and psychological damage, disgrace, humiliation and embarrassment and has been damaged in a sum that exceed the jurisdictional

limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, and punitive damages.

AS AND FOR COUNT SEVEN

Negligent Infliction of emotional Distress

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force as if more fully set forth at length herein.

89. By the actions described herein, the individually named Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff by laws and Constitution of State of New York.

90. As a result of the foregoing, plaintiff sustained great emotional injuries.

91. The CITY and NYPD, as the employers of the Defendants, are responsible for their wrongdoing under the doctrine of respondent superior.

92. That by reason of the foregoing, Plaintiff has been exposed to severe emotional and psychological damage, mental anguish, disgrace, humiliation and embarrassment and has been damaged in a sum that exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction, including the cost of this action, and punitive damages.

AS AND FOR COUNT EIGHT

False Arrest against Defendants, HRV, Astoria Tower and Contreras

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force as if more fully set forth at length herein.

94. Plaintiff was wrongfully, unlawfully and illegally arrested, imprisoned and/or detained without probable cause or other justification.

95. This wrongful and illegal arrest, imprisonment and detention was caused, directly or indirectly by Defendants, HRV, ASTORIA TOWER AND CONTRERAS.

96. Defendants, HRV, ASTORIA TOWER AND CONTRERAS intended to cause Plaintiff to be arrested and imprisoned.

97. Plaintiff was aware of his confinement.

98. Plaintiff did not consent to such confinement.

99. The wrongful acts of Defendants, HRV, ASTORIA TOWER AND CONTRERAS were undertaken with malice and wrongful intent, namely, Defendant officiously and zealously concocted lies that induced the NYPD to arrest Plaintiff, as defendants had a personal grievance against Plaintiff and as Defendants were motivated by revenge and want of pecuniary gain – *to wit*, Defendants believed that Plaintiff owed Defendants money.

100. By virtue of the foregoing arrest and imprisonment, as a direct and proximate result of the conduct of Defendants alleged above, Plaintiff has suffered damages, including but not limited to extreme and permanent emotional distress and mental anguish; damage to reputation and good name; loss of earned wages and other compensation; embarrassment; humiliation; loss of earnings and earnings capacity; as well as special damages in the form of legal costs associated with his imprisonment and arrest.

101. As a result, Plaintiff has suffered damages in an amount, exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with costs, interest and attorneys' fees, to be proven at trial, as well as punitive damages and any other equitable relief this Court deems just and proper.

AS AND FOR COUNT NINE

Malicious Prosecution against Defendants, HRV, Astoria Tower and Contreras

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force as if more fully set forth at length herein.

103. Defendants, by making a complaint to NYPD grounded in a false claim of theft of a car boot, initiated a proceeding against Plaintiff.

104. On May 1, 2014, the Criminal Court of the City of New York, County of Queens dismissed the petit larceny charge against Plaintiff. In this regard, the proceeding terminated in favor of Plaintiff.

105. Defendants did not have probable cause to initiate the Criminal Court proceeding against Plaintiff.

106. Defendants did not have reasonable belief that Plaintiff committed a criminal offense. No reasonable person would believe that Plaintiff committed a criminal offense.

107. Defendants acted with malice when they initiated the Criminal Court proceeding against Plaintiff, because they provided a supporting deposition to the NYPD and/or Queens District Attorney with knowledge of its falsity or reckless disregard for the truth.

108. By virtue of the foregoing arrest and imprisonment, as a direct and proximate result of the conduct of Defendants alleged above, Plaintiff has suffered damages, including but not limited to extreme and permanent emotional distress and mental anguish; damage to reputation and good name; loss of earned wages and other compensation; embarrassment; humiliation; loss of earnings and earnings capacity; as well as special damages in the form of the cost of defending the malicious prosecution alleged, including investigation costs.

109. As a result, Plaintiff has suffered damages in an amount, exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with costs, interest and attorneys' fees, to be proven at trial, as well as punitive damages and any other equitable relief this Court deems just and proper.

AS AND FOR COUNT TEN

Abuse of Process against Defendants, HRV, Astoria Tower and Contreras

110. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 109 of this Complaint with the same force and effect as though set forth herein.

111. Defendants maliciously used a legal process to accomplish some ulterior purpose for which it was not designed or intended, or which was not the legitimate purpose of the particular process employed.

112. Defendants knew that the Criminal Court proceed was groundless and made misrepresentations to gain personal advantage. *To wit*, to settle a grievance against Plaintiff and to exact of revenge against the plaintiff. This is clear from the Defendants' correspondence that is dated February 24, 2014.

113. As a result, Plaintiff has suffered damages in an amount, exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with costs, interest and attorneys' fees, to be proven at trial, as well as punitive damages and any other equitable relief this Court deems just and proper.

AS AND FOR COUNT ELEVEN

Attempted Extortion and Duress against Defendants, HRV, Astoria Tower and Contreras

114. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 113 of this Complaint with the same force and effect as though set forth herein.

115. Defendants, HRV, ASTORIA TOWER AND CONTRERAS actions were illegal and unlawful and designed to cause Plaintiff to pay over sums of money to them without due cause or justification.

116. That Defendants, HRV, ASTORIA TOWER AND CONTRERAS did threaten and intimidate Plaintiff that if he did not relinquish his rights to property, namely Plaintiff's money, Defendants would accuse Plaintiff of a crime and/or cause criminal charges to be instituted against him, and that Defendants would cause Plaintiff to suffer financial harm, harm to employment and harm to his reputation.

117. Defendants specifically threatened to contact the police and accuse the Plaintiff of committing a crime "if the [money] is not paid immediately."

118. By their threats and actions, Defendants have attempted to deprive and Plaintiff of his property by fear of deprivation of his liberty, and fear of financial ruin and damage to his reputation.

119. These acts of intimidation are believed to be committed by Defendants in furtherance of their malicious, tortious course of conduct to extort payment from Plaintiff to which they are not entitled, and inflict physical and economic harm against Plaintiff's person, property, and reputation.

120. Defendants, by their threats, have attempted to compel and induce Plaintiff to deliver money to them by means of instilling in Plaintiff a fear that, if the money is not so delivered, Defendants would cause Plaintiff to be criminally prosecuted, and would publicize supposed facts about plaintiff which, whether they are true or false, would cause harm to Plaintiff's current employment, prospective employment and reputation in general.

121. Defendants' actions did instill in Plaintiff a fear that, if the money is not so delivered, Defendants would cause Plaintiff to be criminally prosecuted, and would publicize supposed facts about plaintiff which, whether they are true or false, would cause harm to Plaintiff's current employment, prospective employment and reputation in general.

122. By reason of the defendants' attempted extortion and duress against Plaintiff, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

123. By virtue of the foregoing, Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of lower courts which would otherwise have jurisdiction.

JURY DEMAND

124. Plaintiff hereby demands trial by jury of all issues properly triable by jury.

125. That this action falls within one or more of the exceptions set forth in CPLR § 1602.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for relief as follows:

That the jury find and the Court adjudge and decree that Plaintiff, WINSTON A. WARNER, shall recover compensatory damage in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, to be determined at trial all Defendants, Jointly and severally, together with interest and costs; and punitive damages in a sum exceeding

the jurisdictional limits of all lower courts that would otherwise have jurisdiction, to be determined at trial, against all non-municipal Defendants, jointly and severally.

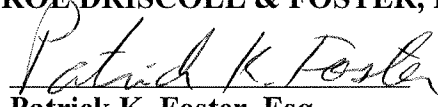
- a. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees, pursuant to 42 U.S.C. § 1988.
- b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: Forest Hills, New York
February 25, 2015

Respectfully submitted,

RENFROE DRISCOLL & FOSTER, LLP

By:


Patrick K. Foster, Esq.

Attorneys for Petitioner

118-35 Queens Blvd., Suite 940

Forest Hills, New York 11375

Tel. No.: (718) 261-5100

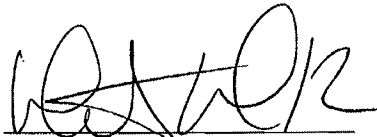
Fax No.: (718) 304-1168

VERIFICATION

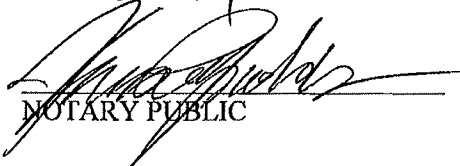
STATE OF NEW YORK)
COUNTY OF New York) ss.:

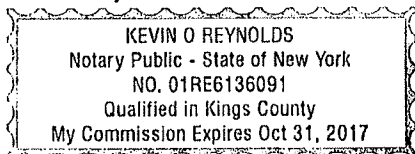
WINSTON A. WARNER, being duly sworn, deposes and says:

That I am a Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief; and that as to those matters I believe same to be true.


WINSTON A. WARNER

Sworn to before me this 28th day
of February, 2015.


NOTARY PUBLIC



Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

WINSTON A. WARNER,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE, DEPARTMENT, POLICE OFFICER GERARD WHITE, TAX REG# 921854, in his individual and official capacity SERGEANT ROSENTHAL in his individual and official capacity, POLICE OFFICERS "JOHN DOES" 1-10 in their individual and official capacity, HRV MANAGEMENT, INC., ASTORIA TOWER 31 LLC and WVILLAHDO CONTRERAS,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

RENFROE DRISCOLL & FOSTER, LLP

Attorneys for Plaintiff

Office Address & Tel. No.:

118-35 Queens Blvd., Suite 940

Forest Hills, NY 11375

(718) 261-5100 * Telecopier (718) 304-1168

Service of a copy of the within

is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

Notice of Entry

[] that the within is a (certified) true copy of a entered in the office of the clerk of
the within named Court on

Notice of Settlement

[] that an order of which the within is a true copy will be settlement to the Hon. , one of the
Judges of the within named Court, at on at 9:30
A.M.

RENFROE DRISCOLL & FOSTER, LLP

Attorneys for Plaintiff

118-35 Queens Blvd., Suite 940

Forest Hills, NY 11375